



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 17 judgments on Tuesday 12 February 2019 and 51 judgments and / or decisions on Thursday 14 February 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 12 February 2019

[Ciantar and Maxkim Ltd v. Malta \(application no. 7448/15\)](#)

The first applicant, Emanuel Ciantar, was born in 1964 and lives in Qormi (Malta). The second applicant, Maxkim Ltd, is a limited liability company incorporated in 1996 and registered in Marsa (Malta). Mr Ciantar is the owner of Maxkim Ltd.

The case concerns two sets of criminal proceedings in which Mr Ciantar's son was found guilty of committing crimes through the use of the applicants' vehicles.

In July 2011, the Court of Magistrates found M., Mr Ciantar's son, guilty of the involuntary grievous bodily harm of two minors, and of driving a van, registered in the name of Maxkim Limited, without a licence. The court sentenced M. to a term of imprisonment, disqualified him from obtaining a driving licence for a period of time, and ordered the confiscation of the van. On appeal, the first-instance judgment was upheld, with the appeal court noting that the confiscation had been ordered because the law provided that both the person and vehicle had to be insured.

M. faced a second set of criminal proceedings in January 2012 in which he was found guilty of driving away a vehicle with the intention to use it. The vehicle was registered in the name of Mr Ciantar. The court did not order the confiscation of the vehicle but it remained in the hands of the authorities during subsequent appeal proceedings. A request to release the vehicle was turned down during the appeal proceedings. It was finally returned to Mr Ciantar following the Court of Appeal judgment in March 2014.

In November 2012 the applicants complained to the Civil Court about the confiscation of the van and the decision of the Court of Criminal Appeal to reject the request to release the other vehicle. The civil court in its constitutional jurisdiction upheld their claim concerning the second vehicle and ordered it to be released immediately. On appeal the Constitutional Court declared that the applicants had suffered a violation of their rights in respect of both vehicles and ordered their release, and the payment of 300 euros to each of the applicants in respect of non-pecuniary damage.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, the applicants complain that they were unlawfully deprived of their property and did not receive adequate compensation for the violation of this provision found by the Constitutional Court. They also allege a violation of their rights under Article 6 (right of access to a court), arguing that they did not have access to a court to challenge the measure depriving them of their property.

[Cristea v. Republic of Moldova \(no. 35098/12\)](#)

The applicant, Valentin Cristea, is a Moldovan national who was born in 1969 and lives in Chişinău. He was an employee of the Ministry of Home Affairs at the relevant time.

The case concerns the non-enforcement of a final judicial decision in his favour and the ineffectiveness of the domestic remedy.

In September 2007 Mr Cristea brought an action against the Chişinău local authorities in order to force them to provide him with housing. On 20 February 2008 the Supreme Court of Justice ordered Chişinău municipal council to provide Mr Cristea and his family with rented accommodation.

On 2 November 2011 Mr Cristea brought an action for damages against the State on the grounds of the non-enforcement of the final decision of the Supreme Court of Justice, claiming compensation for pecuniary and non-pecuniary damage. The Court of Appeal found that Mr Cristea had no longer been in the employment of the Ministry of Home Affairs since 31 March 2011 and that the State was therefore no longer obliged to provide him with housing. Mr Cristea then brought another action for damages against the State seeking reimbursement of the rental for the apartment in which he had been living with his family since 1 June 2011, as well as compensation in respect of non-pecuniary damage.

By decision of 22 July 2015 the Supreme Court of Justice allowed Mr Cristea's appeal on points of law. It acknowledged the non-enforcement of the final decision of 20 February 2008 and awarded the applicant MDL 6,000 (approx. 290 euros (EUR) in respect of non-pecuniary damage and MDL 72,000 (approx. EUR 3 490) in respect of rent paid between 1 June 2011 and 31 May 2013. Mr Cristea submits that he was paid those amounts in March 2016.

Relying on Article 6 § 1 (right to a fair trial) and Article 1 of Protocol No. 1 (protection of property), the applicant complains of the non-enforcement of the final decision of 20 February 2008. He also complains of the lack of an effective remedy within the meaning of Article 13 (right to an effective remedy) to uphold his rights under the aforementioned articles.

[Pais Pires de Lima v. Portugal \(no. 70465/12\)](#)

The applicant, Joaquim Antonio Pais Pires de Lima, was a Portuguese national who was born in 1938, died in 2017 and lived in Cascais. He was a lawyer practising in Lisbon.

The applicant complains that a civil court order to pay damages to a judge whose personal and professional honour and reputation he was alleged to have attacked infringed his freedom of expression.

On 1 March 2007 the applicant wrote to the High Council of the Judiciary (HCJ) to complain of impartiality on the part of a judge, denouncing a case of "corruption" and a "scam", in the wake of a case in which he had been a defence lawyer. The HCJ discontinued the case. The judge then brought an action for damages, which the Lisbon Court partly allowed on 17 July 2008, ordering the applicant to pay 50,000 euros (EUR) in compensation. The applicant appealed against that judgment. The Lisbon Appeal Court did not set the judgment aside but referred the case back to the court of first instance. The Lisbon Court resumed the fact-finding process and held a fresh hearing. On 22 April 2010 it delivered a judgment ordering the applicant to pay the judge the same sum, EUR 50,000, in damages. The court dismissed the applicant's allegations of corruption against judge R.P. Both parties appealed: the court dismissed the applicant's appeal and partly allowed the judge's appeal, increasing the amount of damages to EUR 100,000. The applicant appealed on points of law. The Supreme Court reduced the amount of compensation to EUR 50,000.

On 14 April 2009, in pursuance of its Statute, the Bar Association imposed a reprimand on the applicant on the grounds that he had failed to notify the judge that he would be lodging a complaint against him with the HCJ.

Relying on Article 10 (freedom of expression), the applicant complains that the court order to pay damages for attacking a judge's reputation had amounted to an infringement of his freedom of expression.

[Boltan v. Turkey \(no. 33056/16\)](#)

The applicant, Civan Boltan, is a Turkish national who was born in 1991 and is detained in Bolu Prison.

The case concerns his conditions of detention in the light of his disability, as well as the lack of prospects for his eventual release, given that he was sentenced to aggravated life imprisonment.

In 2012 Mr Boltan, a member of the PKK, sustained injuries while throwing a bomb at a group of soldiers; his arm was amputated and he lost the sight in his left eye. In 2014 he was sentenced to aggravated life imprisonment by judgment upheld by the Court of Cassation. In February 2015 he requested the adaptation of his conditions of detention to his disability, asking not to be placed in an individual cell as specified in his sentence, so that he could be helped by fellow prisoners in his everyday life. Two medical reports of March and April 2015 confirmed that his state of health necessitated the assistance of others, but not a stay of execution of his sentence. His request was rejected in October 2015 by the judge responsible for the sentence enforcement, and subsequently dismissed in October 2015 by the Assize Court. On 11 December 2015 Mr Boltan appealed to the Constitutional Court on the grounds of the incompatibility of his conditions of detention with his disability.

On 18 May 2016 the Constitutional Court dismissed the applicant's appeal as being out of time.

Apart from a sixteen-day period, Mr Boltan was detained in collective cells. A medical report drawn up in 2016 also pointed out that his state of health was not an obstacle to the enforcement of his sentence.

Relying on Article 3 (prohibition of torture and inhuman and degrading treatment), the applicant submits that his placement in an individual cell amounts to inhuman treatment in view of his disability, and that the enforcement of a prison sentence for the rest of his life is incompatible with the provisions of the same Article. Relying on Article 6 (right to a fair trial), he complains of the lack of an assessment of the merits of his complaint concerning his disability.

[Zeki Kaya v. Turkey \(no. 22388/07\)](#)

The applicant, Zeki Kaya, was a Turkish national who was born in 1960 and lived in Bursa (Turkey) until his death, which occurred after he had lodged his application. His heirs decided to continue with his application.

The case concerns domestic proceedings into allegations of medical negligence.

In May 1998 Mr Kaya lost sight in one eye after an ENT operation at the Uludağ university public hospital. In July 1998 he lodged a complaint against the surgeon who had performed the operation. In February 2001 the Criminal Court decided to suspend delivery of judgment.

In October 1998 Mr Kaya brought proceedings before the Administrative Court against the Director of the University Hospital. In March 2006, relying on the Forensic Medical Institute's report estimating the surgeon's share of responsibility at 3/8, the Administrative Court awarded him compensation in respect of the pecuniary and non-pecuniary damage which he had suffered. In June 2009 the Supreme Administrative Court upheld that judgment. Mr Kaya's application for rectification of the latter judgment was dismissed.

In March 2007 the authorities paid him a total of TRY 24,142. In March 2015 the Compensation Board awarded him a further TRY 10,800 in compensation for the domestic courts' failure to comply with the requirement of reasonable length of administrative proceedings.

Relying, in particular, on Article 8 (right to respect for private and family life) and Article 1 of Protocol No. 1 (protection of property), Mr Kaya complained that he had not enjoyed adequate and effective legal protection having regard to the debilitating physical impairment which he had

suffered. In that connection, he pointed out that the criminal proceedings had ended in a stay of delivery of judgment, and submitted that the administrative courts had awarded him a derisory sum in compensation for his pecuniary and non-pecuniary damage. He further alleged that owing to the excessive length of the administrative proceedings, the compensation awarded to him by the domestic courts had fallen in value on account of the monetary devaluation which had occurred while the proceedings were still in hand, pointing out that under domestic law he was debarred from asking the administrative courts to revalue the impugned amount.

[Yakuba v. Ukraine \(no. 1452/09\)](#)

The applicant, Vasyl Yakuba, is a Ukrainian national who was born in 1971 and, at the time of his latest communication with the Court, was detained in Kirovograd.

The case concerns an undercover operation during which Mr Yakuba was arrested for selling drugs.

He was arrested in March 2007 after he had supplied an undercover agent with syringes filled with opium. The transactions were filmed with a hidden camera.

He was convicted in June 2007 of drug trafficking and sentenced to eight years' imprisonment. The trial court found that Mr Yakuba had sold drugs to the undercover agent on three occasions in February and March 2007. His conviction was partly based on the video recording, but also on in-court statements made by the police officer who had arranged the sting operation and by an attesting witness. They both said that they had seen banknotes being handed over to the agent and him returning with filled syringes. The court also relied on a written statement by the undercover agent, who had not been allowed to testify in court in order to protect his identity, and the fact that one of the banknotes used during the operation was found on Mr Yakuba.

Mr Yakuba appealed, complaining that the court had refused to summon the undercover agent to testify in court and to disclose to the defence the video recording of the alleged drug transactions. The Court of Appeal upheld his conviction in March 2008, finding that it had been based on sufficient evidence.

Throughout the proceedings against him, Mr Yakuba alleged that he had been ill-treated by the police during his arrest. The courts rejected his complaints, finding that the police had had to use force against him because, by his own admission, he had attempted to get rid of the drugs on being arrested.

Mr Yakuba complains under Article 3 (prohibition of inhuman or degrading treatment) of police ill-treatment. He also complains that he was not able to question the undercover agent who purchased drugs from him or to examine the video recording of the operation, in breach of Article 6 §§ 1 and 3 (right to a fair trial / right to adequate time and facilities for preparation of defence / right to obtain attendance and examination of witnesses). Lastly, under Article 34 (right of individual petition), he alleges that the authorities refused to provide him with copies of documents from his case file which he needed to substantiate his complaint before the European Court.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Ragnar Þórisson v. Iceland (no. 52623/14)

Carpov v. the Republic of Moldova (no. 6338/11)

Belan and Sviderskaya v. Russia (nos. 42294/13 and 42585/13)

Grigoryev and Igamberdiyeva v. Russia (no. 10970/12)

Muchnik and Mordovin v. Russia (nos. 23814/15 and 2707/16)

Nikolayev v. Russia (no. 61443/13)
Ryklin and Sharov v. Russia (nos. 37513/15 and 37528/15)
Ali Demir v. Turkey (no. 47167/11)
Hikmet Topal v. Turkey (no. 11152/11)
Özbay v. Turkey (no. 62610/12)
Tiverios and Others v. Turkey (no. 38275/06)

Thursday 14 February 2019

[SA-Capital Oy v. Finland \(no. 5556/10\)](#)

The applicant, SA-Capital Oy, is a Finnish company with its head office in Rovaniemi (Finland).

The case in particular concerns the admission of hearsay evidence in competition law proceedings.

After proceedings begun by the Competition Authority in 2004, the Market Court found in December 2007 that the applicant company had been part of an asphalt cartel for contracts offered by the central government. It was found to have taken part in the territorial allocation of markets, some price fixing and in restricting the supply of asphalt mass. It was fined 75,000 euros (EUR).

The defendant companies, including the applicant company, and the Competition Authority all appealed to the Supreme Administrative Court, which in September 2009 overturned the first-instance decision. It found that a single nationwide cartel had existed between 1994 and 2002, affecting central and local government and the private sector.

The Supreme Administrative Court found that the applicant company had taken part in the cartel, at both central government and municipal level, in particular in Lapland and North Karelia, from May 1995 to February 2000. It increased the company's fine to EUR 500,000, which was determined according to the company's relatively small market share and the nature of its infringements in comparison with the cartel's main participants.

The Supreme Administrative Court based its decision on evidence that it had heard directly in court and on testimony that was heard in the Market Court, which included evidence which witnesses had either experienced themselves or had heard or inferred from others.

Relying on Article 6 §§ 1 and 3 (d) (right to fair hearing by a tribunal/right to examine witnesses or have them examined), the applicant company complains that the Supreme Administrative Court had relied on hearsay evidence from unidentified sources which it was not able to examine or have examined. Under Article 6 §§ 1 and 2 (right to fair hearing by a tribunal/presumption of innocence), it alleges that the Supreme Administrative Court accepted that the standard of proof in competition law cases could be lower than the level of "beyond reasonable doubt" or of the "preponderance of evidence". It also complains of a reversal of the burden of proof.

[Narjis v. Italy \(no. 57433/15\)](#)

The applicant, Mohamed Narjis, is a Moroccan national who was born in 1979 and lives in Morocco.

The case concerns the refusal of the Italian authorities to renew Mr Narjis' residence on the grounds that he poses a danger to society, and his expulsion to Morocco.

Mr Narjis was admitted to Italy in 1989 under a family reunion procedure. His father had obtained a residence permit as an itinerant trader. On the latter's death in 2009 his trading activities were taken over by Mr Narjis' mother and one of his sisters.

In 1995 Mr Narjis dropped out of school and began to take drugs. He remained in Italy on the basis of renewable work permits. His police record comprises nineteen entries, including some convictions, in particular for aggravated theft and armed robbery.

In January 2010, while he was in detention in the framework of a conviction for a hold-up, Mr Narjis applied for the renewal of his residence permit. His application was twice turned down by the Milan Head of Police, in March and July 2010, on the grounds of the danger posed to society. Mr Narjis appealed to the administrative court. Meanwhile, in July 2010, the Prefect of Milan ordered his expulsion from the national territory. Mr Narjis appealed to the Milan Justice of the Peace, who stayed the proceedings pending the administrative court's decision. Meanwhile Mr Narjis had left Italy for Morocco. In February 2012 the administrative court dismissed his appeal and the *Consiglio de Stato* upheld that judgment.

In April 2016 a new wanted notice was issued against Mr Narjis, pursuant to his conviction for receiving stolen property. He is currently still in Morocco.

Relying on Article 8 (right to respect for private and family life), Mr Narjis complains that he was forced to leave Italy despite the fact that his mother, sisters and brother all live there.

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Levon Alikhanyan v. Armenia (no. 6818/10)
Mher Alikhanyan v. Armenia (no. 4413/10)
Mashinyan and Ramazyan v. Armenia (no. 65124/09)
Parsadanyan v. Armenia (no. 5444/10)
Ramazyan v. Armenia (no. 54769/10)
Vardanyan and Hakhverdyan v. Armenia (no. 4178/10)
Mammadov v. Azerbaijan (no. 36837/11)
Ringwald v. Croatia (nos. 14590/15 and 25405/15)
Šare v. Croatia (no. 22899/12)
Sršen v. Croatia (no. 30305/13)
Said Abdul Salam Mubarak v. Denmark (no. 74411/16)
Alexoudis v. Greece (no. 31202/17)
Athanatsiki and Others v. Greece (no. 44924/13)
O'Leary v. Ireland (no. 45580/16)
Capua and Others v. Italy (nos. 53787/11 and 66122/11)
Ugliano v. Italy (no. 53247/10)
Porsenna v. Malta (no. 1109/16)
Bektaş v. the Republic of Moldova (no. 1015/13)
Spasenoski v. "the former Yugoslav Republic of Macedonia" (no. 8787/13)
Acer v. Turkey (no. 25504/11)
Adil Yıldırım v. Turkey (no. 22382/07)
Akın Peker v. Turkey (no. 50702/18)
Akkaya v. Turkey (no. 32015/09)
Altay v. Turkey (no. 10783/09)
Altundağ v. Turkey (no. 48733/07)
Aşık and Others v. Turkey (no. 24244/11)
Aydın v. Turkey (no. 48348/10)
Bozkaya v. Turkey (no. 23396/10)
Çaki and Others v. Turkey (nos. 41822/07, 42709/07, and 52711/07)
Çelikbaş v. Turkey (no. 58309/10)
Fatih Taş v. Turkey (no. 51508/08)
Fatih Taş v. Turkey (no. 51512/08)

Fatih Taş v. Turkey (no. 33528/10)
Güllü v. Turkey (no. 70769/11)
İnce v. Turkey (no. 27135/09)
Kalık v. Turkey (no. 1743/10)
Keskin v. Turkey (no. 64105/09)
Unutkanlar v. Turkey (no. 10005/11)
Özel v. Turkey (no. 29028/09)
Özer v. Turkey (no. 69270/12)
Özliseli v. Turkey (no. 10498/11)
Öztürk v. Turkey (no. 57741/10)
Sumer v. Turkey (no. 29026/09 and 29042/09)
Terzi and Demirel v. Turkey (no. 2639/12)
Tiğiz v. Turkey (no. 23621/08)
Tuğcu v. Turkey (no. 11972/12)
Tütüncü v. Turkey (no. 246/13)
Ünlü v. Turkey (no. 32009/11)
Zorina and Others v. Ukraine (nos. 20295/07, 24328/08, 65898/11, and 52601/12)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.